

EP 260/2023

Case advanced. The counsel for Dhr files memo seeking leave to withdraw the petition in view of the full satisfaction of the petition claim. However Sri GS advocate files power for Jdr along with I.A.No.2 U/sec 151 of CPC seeking to recall the order dtd.08.02.2023. He seeks for time to file objection in view of pendency of RFA before the Hon&#amp;#039ble High Court. However no stay is granted. In view of the report of the bailiff dtd.10.02.2023 with regard to the due execution of delivery warrant and handing over possession of petition premises to the Dhr in presence of witnesses under the mahazar, the prayer of the counsel for Jdr is cannot be accepted since already the warrant is duly executed and the Jdr is shown to be out of possession of the schedule premises. Hence, the memo filed by the Dhr is hereby accepted and the EP is hereby closed as the claim of the petition is fully satisfied.

X ACC & SJ, Bangalore